

Contractor's Objection — Determination ENG-NRB4-0083

Nandira River Bridge Project — Package NRB-4

Document Reference: CTR-NRB4-0169
Date: 20-May-2024
Contract No.: NHIA/NRB4/CW/2020-01
From: Contractor, Project Manager, Sagara Constructions Pvt. Ltd.
To: Engineer, Meridian Engineering Consultants

Subject: Objection — Determination ENG-NRB4-0083, Pier P2 Pier Cap Cracking

We refer to the Engineer's determination ENG-NRB4-0083 dated 06-May-2024, finding the Contractor liable under Sub-Clause 11.2 for the cost of remedying the Pier P2 pier cap cracking.

We do not dispute the curing record identified in our own Root Cause Analysis RCA-NRB4-004, nor the exclusion of design, materials and ambient conditions as contributing causes. We submit, however, that a shortfall in curing duration measured in days, on a single pour among many completed successfully across the Works, is not, without further direct evidence linking that specific shortfall to this specific cracking (as opposed to a general association between curing shortfalls and shrinkage cracking of this type), sufficient to discharge the Engineer's burden of establishing the cause of the defect to the standard required by Sub-Clause 11.2.

We do not consider it commercially proportionate to escalate this matter further given the modest scope of the remedial work involved, and will proceed to rectify the cracking in accordance with any instruction issued under Sub-Clause 11.1, without prejudice to, and expressly reserving, our position that liability for the cost of that work has not been established to the standard required by Sub-Clause 11.2.

Regards,
Project Manager
Sagara Constructions Pvt. Ltd.